

## 6. Director's Hearing Preparation SOP:

A. Part 1: Cover Page: Case number such as **#HHP-25-05 (Healthy Housing Program, last two digits of the current year and the case number of your case)**, and the address of the complaint.

B. Part 2: Environmental Health Basis of Proposed Enforcement Action Summary

1. This page needs to include all responsible parties, case number, purpose of hearing, enforcement codes and description, etc.
2. Make sure to check all the nuisance order on this page that is comply to your hearing case.
3. After completing the hearing package, program manager will have to review and sign this page before submit the package to hearing officer and all responsible parties.

C. Part 3: Director's Case Chronology:

1. This page will include: all responsible parties, program code, case number, hearing date, etc.
2. All exhibits need to be concise with observation/notes of each inspection/visit with have clear time frame.
3. **Hearing order proposal will include:**
  - **The property at XXX declare as public health nuisance.**
  - Property owner/representative shall abate the nuisance within **30 days**, after the Director's Hearing Order has been signed by the Director's Hearing Officer.
  - Requirements for all responsible parties to abate all health code violations with 30 days. (Cab be specific)
  - DPH to refer the case to City Attoney's office for civil enforcement.
  - Administrative fee of \$XXX per week/month for failure to abate all health code violations.

D. Part 4: Exhibits (Inspection Reports, inspection photos, and related documents. **Noted: Could be more than 5 exhibits for the case, depending on the case.)**

1. Exhibit A: Initial inspection report and photos.
2. Exhibit B: Re-inspection report and photos.
3. Exhibit C: 2<sup>Nd</sup> re-inspection report and photos.
4. Exhibit D: 3<sup>rd</sup> re-inspection report and photos.
5. Exhibit E: Notice of Hearing
  - Date of issuing Notice of hearing.
  - Post up: Notice of hearing, Re-inspection report. and official N.O.V (Official Notice of Violation, use city attorney approved template) on exterior wall/door of property and

photo documents with address/property number of the property.

- Mail and email: Notice of hearing, Re-inspection report. And official N.O.V to all responsible parties. (All of these documents must be mailed in regular mail and certified mail, and photo documents of the mails have to include in exhibit E.)
- 1<sup>st</sup> Proof of Service (responsible parties have to sign if you have delivered to them.)

E. Part 5: Additional documents will be attached at the end of the hearing package. (This part could be as exhibits or additional section, depends on the case)

1. Copies of APS referrals
2. Pest control reports from property management/representative.
3. Mail/email corresponding between you, property management/representative or any responsible parties to your case.
4. Copies of notice of entry.
5. 2<sup>nd</sup> Proof of service (hearing package: mail (regular and certified, all need to photo documented), email or hand delivered.

### Timeline and requirements for Director's hearing preparations:

1. Hearing Notice, copy of most recent re-inspection report, and official N.O.V have to post up, hand delivered, mail (regular & certified) and email (if available) to responsible parties **at least 14 calendar days** from hearing.
2. Hearing package with Manger signature hand delivered mail (regular & certified) and email (if available) to responsible parties **at least 5 calendar days** prior to Director's Hearing.
3. All exhibits will be labeled with letter of A, B C, D, etc in red on right top corner of each page.
4. All exhibits (inspection reports, photographs, related documents, etc that supporting the case) will be align with Chronology. The timeline of each inspection/site visit will be match with Chronology.

5. **ONE photograph per page** and should include date, time, label, address of location and description.
6. Add page number at the middle of bottom of each page to the package before submitting to program manager.
7. Review the hearing package with Adrienne and Winnie before submitting it to program manager.
8. Schedule in advance with Adrienne and Winnie to review the package. **Every 1<sup>st</sup> Wednesday morning of the month** will be the final draft of the unsigned hearing package reviewing day.
9. Complete all proposed edits after reviewing with Adrienne and Winnie, submit to program manager for final review.
10. After the program manager signed the hearing package. The hearing package with the entirety needs to immediately mail (regular mail & certified mail), email and hand delivered to all responsible parties. (this has to done **at least 5 calendar days** from hearing).
11. Email the whole package the hearing coordinator of the month so he/she could submit to hearing officer (this has to done **at least 5 calendar days** from hearing).
12. The whole signed hearing package has to upload to Teams files (Hearing Addenda & Documents)
13. Final re-inspection report and re-inspection photos needs to email to hearing coordinator and upload to Teams files (Hearing Addenda & Documents) at least 24 hours before Director's hearing.
14. After received signed hearing order from hearing coordinator, mail and email a copy of hearing order to all responsible parties.